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Case Number: 25PSCV03156 Hearing Date: September 10, 2026 Dept: 6

CASE

NAME: Rustico

de Guzman v. Toyota Motor Sales, U.S.A., Inc., et al.

1. Defendant

Toyota Motor Sales, U.S.A., Inc.'s Motion to Compel Plaintiffs' Further Responses to Toyota Motor Sales, U.S.A., Inc.'s Special Interrogatories, Set One, and Request for Monetary Sanctions;

2. Defendant

Toyota Motor Sales, U.S.A., Inc.'s Motion to Deem Admitted Toyota Motor Sales, U.S.A., Inc.'s Requests for Admission, Set One, and Request for Monetary Sanctions;

3. Defendant

Toyota Motor Sales, U.S.A., Inc.'s Motion to Compel Plaintiffs' Further Responses to Toyota Motor Sales, U.S.A., Inc.'s Requests for Production, Set One, and Request for Monetary Sanctions; and

4. Defendant

Toyota Motor Sales, U.S.A., Inc.'s Motion to Compel Vehicle Inspection and Request for Monetary Sanctions.

TENTATIVE

RULING

The Court DENIES Defendant Toyota Motor Sales, U.S.A., Inc.'s Motion to Compel Plaintiffs' Further Responses to Toyota Motor Sales, U.S.A.,

Inc.'s Special Interrogatories, Set One, and Request for Monetary Sanctions.

The Court DENIES Defendant Toyota Motor Sales, U.S.A., Inc.'s Motion to Compel Plaintiffs' Further Responses to Toyota Motor Sales, U.S.A., Inc.'s Requests for Production, Set One, and Request for Monetary Sanctions.

The Court GRANTS Defendant Toyota Motor Sales, U.S.A., Inc.'s Motion to Deem Admitted Toyota Motor Sales, U.S.A., Inc.'s Requests for Admission, Set One, and Request for Monetary Sanctions. The Court hereby deems the truth of the matters specified in Defendant Toyota Motor Sales, U.S.A., Inc.'s Requests for Admission, Set One, Numbers 2 and 17 admitted and conclusively established as to Plaintiff. The Court further GRANTS Toyota's request for monetary sanctions in the amount of \$1,335.00. Plaintiff must pay these sanctions to Toyota's counsel within 20 calendar days of the Court's order.

The Court DENIES Defendant Toyota Motor Sales, U.S.A., Inc.'s Motion to Compel Vehicle Inspection and Request for Monetary Sanctions.

Defendant Toyota Motor Sales, U.S.A., Inc. is ordered to give notice of the Court's ruling within five calendar days of this order.

BACKGROUND

This is a Song-Beverly action. On August 29, 2025, plaintiff Rustico de Guzman (Plaintiff) filed this action against defendants Toyota Motor Sales, U.S.A., Inc. (Toyota), Puente Hills Toyota (collectively, Defendants), and Does 1-10, alleging causes of action for violation of subdivision (d) of Civil Code section 1793.2, violation of subdivision (b) of Civil Code section 1793.2, violation of subdivision (a)(3) of Civil Code section 1793.2, breach of the implied warranty of merchantability, negligent repair, and fraudulent inducement-concealment.

On May 13, 2026, Defendant Toyota moved to compel further responses to written discovery. On May 14, 2026, Toyota moved to compel a vehicle inspection. On June 10, 2026, an Informal Discovery Conference (IDC) was initially held but taken off calendar due to Toyota's failure to appear. On July 13, 2026, an IDC was held, and the parties agreed Plaintiff would provide supplemental

responses by August 12, 2026, and that Toyota would file a supplemental declaration or notice of withdrawal by September 1, 2026. On August 25, 2026, Plaintiff opposed the motion to compel vehicle inspection. On September 3, 2026, Toyota replied to Plaintiff's opposition and provided a supplemental declaration.

LEGAL

STANDARD

Interrogatories

Code of Civil Procedure section 2030.300, subdivision (a), provides that on receipt of responses to interrogatories, the propounding party may move for an order compelling a further response if the propounding party deems that any of the following apply:

(1) An answer to a particular interrogatory is evasive or incomplete.

(2) An exercise of the option to produce documents under Section 2030.230 is unwarranted or the required specification of those documents is inadequate.

(3) An objection to an interrogatory is without merit or too general.

(Code Civ. Proc., § 2030.300, subd. (a).)

Code of Civil Procedure section 2030.300, subdivision (d), further provides that "[t]he court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a further response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (Code Civ. Proc., § 2030.300, subd. (d).)

Requests for Production of Documents

Code of Civil Procedure section 2031.310, subdivision (a), provides that on receipt of responses to request for production of documents, the demanding party may move for an order compelling further responses if:

(1) A statement of compliance with the demand is incomplete.

(2) A representation of inability to comply is inadequate, incomplete, or evasive.

(3) An objection in the response is without merit or too general.

(Code Civ. Proc., § 2031.310, subd. (a).)

Code of Civil Procedure section 2031.310, subdivision (h), further provides that “[t]he court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel further response to a demand, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2031.310, subd. (h).)

Requests
for Admission

Code
of Civil Procedure section 2033.290, subdivision (a), provides that on receipt of responses to requests for admission, the party requesting admissions may move for an order compelling a further response if that party deems that either or both of the following apply:

(1) An answer to a particular request is evasive or incomplete.

(2) An objection to a particular request is without merit or too general.

(Code Civ.
Proc., § 2033.290, subd. (a).)

Code of Civil Procedure section

2033.290, subdivision (d), further provides that "[t]he court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel further response, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (Code Civ. Proc., § 2033.290, subd. (d).)

DISCUSSION

Meet and Confer

The Court finds Toyota's efforts to meet and confer before bringing this motion sufficient. (Minute Order (7/13/26); Code Civ. Proc., §§ 2030.300, subd. (b)(1), 2031.310, subd. (b)(2), 2033.290, subd. (b)(1).)

Special

Interrogatories – Summary of Arguments and Analysis

Toyota

contends it served Special Interrogatories Numbers 7–14, seeking the amounts and itemization of Plaintiff's claimed restitution and incidental and consequential damages, and contends Plaintiff answered only with boilerplate objections that failed to provide the requested factual information. Toyota argues the objections lack any stated basis and are meritless, and that damages information is uniquely within Plaintiff's possession. Toyota seeks an order compelling code-compliant supplemental responses and \$1,760 in sanctions. Toyota frames Plaintiff's counsel as a high-volume filer who serves mass-produced deficient responses in bad faith.

Plaintiff

did not oppose this motion.

The

Court finds Toyota's motion to compel further responses to its Special

Interrogatories, Set One, unavailing. Although not mentioned in the parties' respective papers, the Court notes that it is unclear whether Toyota's motion is timely. Whether the motion was timely served is a jurisdictional issue that may affect whether the Court can rule on the merits of this motion. (Sexton v. Superior Ct. (1997) 58 Cal.App.4th 1403, 1410 (Sexton).) The deadline to move to compel further responses to a request for production of documents is within 45 days of service of the verified responses, plus any applicable method-of-service extensions. (Code Civ. Proc., § 2031.310, subd. (c); see Golf & Tennis Pro Shop, Inc. v. Superior Ct. (2022) 84 Cal.App.5th 127, 137 (Golf) [accounting for two court-day electronic service extension under prior version of Code of Civil Procedure section 1010.6].) Toyota filed this motion on May 13, 2026, which is more than 45 days after Toyota received Plaintiff's responses on March 24, 2026. Further compounding this problem is the lack of any proof of service or evidence indicating how or when Plaintiff served those responses. (See Ely III Decl., ¶ 4, Ex. B.) If the responses were electronically served on March 24, 2026 then the deadline for this motion was May 12, 2026, but if they were served by mail, then the deadline was May 13, 2026. (Code Civ. Proc., §§ 1010.6, subd. (a)(3)(B), 1013, subd. (a).) Also, if the responses were unverified, then there would be no deadline yet. (See Golf, supra, 84 Cal.App.5th at p. 134 [45-day deadline does not begin to run upon service of hybrid unverified factual responses and objections where the motion challenges only the objections].)

Nevertheless, the foregoing issue is moot because Toyota's supplemental declaration indicates that Plaintiff served supplemental responses and verifications to Special Interrogatories on August 27, 2026. (Ely III Suppl. Decl., ¶¶ 3-4; Minute Order (7/13/26).) To the extent Toyota contends Plaintiff's supplemental response to Form Interrogatory 9.1 is deficient, Toyota did not provide a copy of that response for the Court to assess Toyota's contention. (See Ely III Suppl. Decl., ¶ 4.) The Court also notes that Form Interrogatory 9.1 was not mentioned in Toyota's motion or corresponding separate statement. (See generally Motion to Compel Plaintiffs' Further Responses to Toyota Motor Sales, U.S.A., Inc.'s Special Interrogatories, Set One; Separate Statement for Special Interrogatories, Set One.) The Court further finds monetary sanctions unwarranted here given Plaintiff's substantial compliance with the parties' July 13, 2026 agreement. (Code Civ. Proc., § 2030.300, subd. (d).)

Based

on the foregoing, the Court DENIES Toyota's Motion to Compel Plaintiffs' Further Responses to Toyota Motor Sales, U.S.A., Inc.'s Special Interrogatories, Set One and Request for Sanctions.

Requests

for Production of Documents – Summary of Arguments and Analysis

Toyota

argues Plaintiff served objection-laden responses and, where he agreed to comply, failed to identify by Bates range which produced documents were responsive to each request. Toyota contends the requests seek basic, relevant material, such as the sales contract, loan and insurance records, repair records, and damages documentation, that is uniquely in Plaintiff's control. Toyota asserts the boilerplate objections state no basis and are therefore improper. Toyota relies on its May 4, 2026 meet-and-confer email, to which it says Plaintiff did not respond. Toyota seeks supplemental code-compliant responses and \$1,760 in sanctions.

Plaintiff

did not oppose this motion.

The

Court finds Toyota's motion to compel further responses to its Requests for Production of Documents, Set One, unavailing. As noted above, Toyota's supplemental declaration indicates Plaintiff provided verified supplemental responses and verifications to Requests for Production of Documents Numbers 2 and 5 per the parties' agreement, albeit untimely, and does not otherwise indicate or provide evidence that those responses were deficient. (See Ely III Suppl. Decl., ¶¶ 3-4; Minute Order (7/13/26).)

The Court further finds monetary sanctions unwarranted given Plaintiff's substantial compliance with the parties' July 13, 2026 agreement. (Code Civ. Proc., § 2031.310, subd. (h).)

Based

on the foregoing, the Court DENIES Toyota's Motion to Compel Plaintiffs' Further Responses to Toyota Motor Sales, U.S.A., Inc.'s Requests for Production of Documents, Set One and Request for Sanctions.

Requests

for Admission

– Summary of Arguments and Analysis

Toyota

moves to have Request for Admission Numbers 2 and 17, i.e., regarding whether Plaintiff revoked acceptance before suit and whether he gave written notice of unsuccessful repair attempts, deemed admitted, arguing Plaintiff served only unverified boilerplate objections, which it treats as equivalent to no response at all. Toyota contends Plaintiff thereby waived all objections and that only admissions, denials, or statements of inability are permitted absent relief. Toyota seeks a deem-admitted order and \$1,760 in sanctions. Toyota also asks that any later-served objections be deemed waived.

Plaintiff

did not oppose this motion.

The

Court finds Toyota's motion to deem requests for admission admitted persuasive. Toyota indicates that Plaintiff provided unverified responses to Request for Admission Numbers 2 and 17. (See Notice of Motion to Deem Admitted Toyota Motor Sales, U.S.A., Inc.'s Requests for Admission, Set One, 2:14; Ely III Decl., ¶ 4, Ex. B.) Unverified responses "are tantamount to no responses at all. [Citation.]" (Appleton v. Superior Ct. (1988) 206 Cal.App.3d 632, 636.) Toyota's supplemental declaration does not indicate having received any verified supplemental responses from Plaintiff to these discovery requests. (See Ely III Suppl. Decl., ¶¶ 3-4.) The parties' July 13, 2026 agreement also mentions nothing about any supplemental responses. (See Minute Order (7/13/26).) Finally, the Court construes Plaintiff's lack of opposition as a concession that Toyota's arguments are meritorious. (D.I. Chadbourne, Inc. v. Superior Court (1964) 60 Cal.2d 723, 728, fn. 4 [where nonmoving party fails to oppose a ground for a motion, "it is assumed that [nonmoving party] concedes" that ground].) The Court therefore GRANTS Toyota's motion to deem requests for admissions admitted and hereby deems the truth of the matters specified in Requests for Admission, Set One, Numbers 2 and 17 admitted and conclusively established as to Plaintiff.

The Court further GRANTS Toyota's

request for monetary sanctions in the amount of \$1,335.00, comprised of 3.0 hours preparing this motion and appearing at the hearing on the motion, multiplied by the \$425.00 hourly rate, plus the \$60.00 filing fee. Plaintiff

must pay these sanctions to Toyota's counsel within 20 calendar days of the Court's order.

Compel

Vehicle Inspection

Summary of Arguments

Toyota

contends it served a Notice of Vehicle Inspection on February 17, 2026, setting an inspection of the subject vehicle for March 17, 2026, which it says is central to evaluating Plaintiff's Song-Beverly claims. Toyota states that Plaintiff served objections on March 12, 2026, and did not produce the vehicle on March 17, 2026. Toyota asserts it followed up on March 20, April 1, and April 13, 2026, seeking alternative dates by April 17, 2026, but Plaintiff offered none. Toyota argues court intervention is necessary and seeks production within 20 days plus \$1,760 in sanctions.

In

opposition, Plaintiff argues he never refused inspection and objected only to a unilaterally noticed date, and that his counsel worked in good faith to coordinate the vehicle, expert, and calendars, and offered several dates including August 10, August 17, and October 22, 2026. Plaintiff contends Toyota did not meet and confer in good faith before filing because he was still coordinating availability, and asserts substantial justification. Plaintiff asks the Court to deny the motion and sanctions or, alternatively, to order the inspection on a mutually agreeable date without sanctions.

In

reply, Toyota argues that Plaintiff delayed and obstructed by failing to provide firm dates despite repeated requests and deadlines, and that offering dates only after the motion was filed does not moot it. Toyota argues the belated dates reflect bad-faith abuse of the discovery process and that the court retains discretion to order inspection and impose sanctions. Toyota renews its request for production within 20 days and for monetary sanctions.

Analysis

The

Court finds Toyota's motion to compel vehicle inspection unavailing. A motion

to compel under Code of Civil Procedure section 2031.320 requires a statement of compliance from the responding party. (Code Civ. Proc., § 2031.320, subd. (a).) Toyota provided no evidence of Plaintiff making a statement of compliance and then failing to comply; in fact, the evidence shows Plaintiff objected to the inspection demand before the inspection was to occur. (Wong Decl., ¶ 5, Ex. 2.) As such, Toyota's motion does not fall within Code of Civil Procedure section 2031.320, subdivision (a).

Alternatively,

if the Court treated the underlying request as a request for production based on Plaintiff's objection and in turn treated this motion as a motion to compel further response under Code of Civil Procedure section 2031.310, the motion would be untimely as having been filed 63 days after the March 12, 2026 objections, and the Court would lack jurisdiction to rule on the motion except to deny it. (Code Civ. Proc., § 2031.310, subd. (c); Sexton, *supra*, 58 Cal.App.4th at p. 1410.) Additionally, if the vehicle inspection demand were treated as a request for production, the February 17, 2026 notice with a March 17, 2026 inspection date, i.e., 28 days, would have been untimely under Code of Civil Procedure section 2031.030, subdivision (c)(2). (Code Civ. Proc., § 2031.030, subd. (c)(2); Ely III Decl., Ex. A.) The Court therefore DENIES Toyota's motion to compel vehicle inspection and the corresponding request for sanctions.

Notwithstanding the foregoing, given

Plaintiff's stated willingness to permit an inspection on October 22, 2026, the Court will discuss with the parties at the hearing on this motion whether they will stipulate to a vehicle inspection completion date on or before October 22, 2026. (See Opp., 1:4-13.)

CONCLUSION

The Court DENIES Defendant Toyota Motor Sales, U.S.A., Inc.'s Motion to Compel Plaintiffs' Further Responses to Toyota Motor Sales, U.S.A., Inc.'s Special Interrogatories, Set One, and Request for Monetary Sanctions.

The Court DENIES Defendant Toyota Motor Sales, U.S.A., Inc.'s Motion to Compel Plaintiffs' Further Responses to Toyota Motor Sales, U.S.A., Inc.'s Requests for Production, Set One, and Request for Monetary Sanctions.

The Court GRANTS Defendant Toyota Motor Sales, U.S.A., Inc.'s Motion to Deem Admitted Toyota Motor Sales, U.S.A., Inc.'s Requests for

Admission, Set One, and Request for Monetary Sanctions. The Court hereby deems the truth of the matters specified in Defendant Toyota

Motor Sales, U.S.A., Inc.'s Requests for Admission, Set One, Numbers 2 and 17 admitted and conclusively established as to Plaintiff. The Court further GRANTS Toyota's request for monetary sanctions in the amount of \$1,335.00. Plaintiff must pay these sanctions to Toyota's counsel within 20 calendar days of the Court's order.

The Court DENIES Defendant Toyota

Motor Sales, U.S.A., Inc.'s Motion to Compel Vehicle Inspection and Request for Monetary Sanctions.

Defendant Toyota Motor Sales,

U.S.A., Inc. is ordered to give notice of the Court's ruling within five calendar days of this order.